

IN THE SENATE

SENATE BILL NO. 1318

BY STATE AFFAIRS COMMITTEE

AN ACT

RELATING TO THE AUDIT OF REFUGEE RESETTLEMENT; AMENDING CHAPTER 4, TITLE 67, IDAHO CODE, BY THE ADDITION OF A NEW SECTION 67-467, IDAHO CODE, TO ESTABLISH PROVISIONS REGARDING AN AUDIT OF THE RESETTLEMENT OF REFUGEES; AND DECLARING AN EMERGENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 4, Title 67, Idaho Code, be, and the same is hereby amended by the addition thereto of a NEW SECTION, to be known and designated as Section 67-467, Idaho Code, and to read as follows:

67-467. AUDIT OF REFUGEE RESETTLEMENT. (1) As used in this section:

(a) "Entity" means any corporation and foreign corporation; business corporation and foreign business corporation; for-profit and nonprofit unincorporated association; corporation sole; business trust, estate, partnership, trust, and two (2) or more persons having a joint or common economic interest; and state, the United States, and foreign government.

(b) "Illegal alien" means a person who has overstayed the person's visa or entered the United States without authorization irrespective of any temporary status the person may have been granted by the department of homeland security allowing the person to be present in the United States.

(c) "Refugee" means any person who is outside any country of such person's nationality or, in the case of a person having no nationality, is outside any country in which such person last habitually resided, and who is unable or unwilling to return to, and is unable or unwilling to avail himself of the protection of, that country because of persecution or a well-founded fear of persecution on account of race, religion, nationality, membership in a particular social group, or political opinion.

(d) "Resettlement services" means any service provided by an entity that entered into a grant, contract, or cooperative agreement with the United States department of state or other appropriate federal agency to provide for the reception and initial placement of refugees in the United States.

(2) Any entity incorporated under the laws of the state of Idaho providing resettlement services for refugees shall provide the legislature an annual audit of such services in accordance with the provisions of sections 67-466 and 67-705, Idaho Code.

(3) Such audit shall detail the following:

- (a) The total number of refugees served;
- (b) The nationality and gender of refugees served;
- (c) The language abilities of refugees served;

1 (d) The successful rate of participation in language remediation pro-
2 gramming for refugees served;

3 (e) The counties and municipalities where refugees served are housed;

4 (f) The housing units taken by refugees served; and

5 (g) The vital statistics, including the rates of communicable disease,
6 among refugees served.

7 (4) Any entity incorporated under the laws of the state of Idaho pro-
8 viding resettlement services for refugees is prohibited from aiding illegal
9 aliens or released aliens awaiting removal.

10 (5) Any entity providing refugee resettlement services that has pro-
11 vided assistance to illegal aliens shall account for the names and identi-
12 fying demographics of such aliens for the purposes of providing a catalog of
13 names that may be matched against federal immigration databases at the de-
14 partment of homeland security, department of health and human services, and
15 department of state.

16 SECTION 2. An emergency existing therefor, which emergency is hereby
17 declared to exist, this act shall be in full force and effect on and after
18 July 1, 2026.